

1 ENGROSSED HOUSE
2 BILL NO. 4311

By: Blair of the House

3 and

4 Daniels of the Senate
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7 An Act relating to property; amending 60 O.S. 2021,
8 Section 668, as last amended by Section 3, Chapter
9 421, O.S.L. 2025 (60 O.S. Supp. 2025, Section 668),
10 which relates to the Unclaimed Property Act;
increasing percentage amount related to service
charges; providing an effective date; and declaring
an emergency.

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12 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

13 SECTION 1. AMENDATORY 60 O.S. 2021, Section 668, as last
14 amended by Section 3, Chapter 421, O.S.L. 2025 (60 O.S. Supp. 2025,
15 Section 668), is amended to read as follows:

16 Section 668. A. There is hereby created in the State Treasury
17 the "Unclaimed Property Fund", the principal of which shall
18 constitute a trust fund for persons claiming any interest in any
19 property delivered to the state under the Uniform Unclaimed Property
20 Act and may be invested as provided in the Uniform Unclaimed
21 Property Act and shall not be expended except as provided in the
22 Uniform Unclaimed Property Act. All funds received under the
23 Uniform Unclaimed Property Act, including the proceeds from the sale
24 of abandoned property under Section 667 of this title, shall

1 forthwith be deposited by the State Treasurer in the Unclaimed
2 Property Fund, except that the State Treasurer may before making any
3 deposit to the fund deduct:

4 1. All costs in connection with the sale of abandoned property;

5 2. All costs of mailing and publication in connection with any
6 abandoned property including the cost of custody services for
7 unclaimed securities;

8 3. Reasonable service charges not to exceed ~~four percent (4%)~~

9 six percent (6%) of the monies accruing to the state under the
10 Uniform Unclaimed Property Act, which may be used to defray the
11 administrative costs, including costs necessary to retain legal
12 counsel to ensure compliance with the Uniform Unclaimed Property
13 Act, or to acquire computer hardware and software to be used
14 exclusively to help administer the unclaimed property program;

15 4. An amount equal to fifteen percent (15%) of the funds
16 accruing to the state pursuant to a contract with the State
17 Treasurer providing information leading to the delivery of unclaimed
18 property held by a holder to the State Treasurer to be deposited in
19 the Unclaimed Property Clearinghouse Fund; and

20 5. An amount not to exceed twenty-five percent (25%) of the
21 value of the funds in an action to enforce the Uniform Unclaimed
22 Property Act, which is to be used solely to pay attorney fees to any
23 person who was authorized by the State Treasurer to bring the
24 action.

1 B. Before making a deposit to the Unclaimed Property Fund, the
2 State Treasurer shall record the name, last-known address of each
3 person appearing from the holders' reports, property type, unclaimed
4 property identification code, relation code, date of last activity,
5 reported year, holder name, amount, number of shares of securities,
6 and name of the securities issuer or stock ticker symbol to be
7 entitled to the abandoned property and of the name and last-known
8 address of each insured person or annuitant, and with respect to
9 each policy or contract listed in the report of a life insurance
10 corporation, its number, the name of the corporation, and the amount
11 due. After a period of twelve (12) months has elapsed, the record
12 shall be available for public inspection during normal business
13 hours.

14 SECTION 2. This act shall become effective July 1, 2026.

15 SECTION 3. It being immediately necessary for the preservation
16 of the public peace, health or safety, an emergency is hereby
17 declared to exist, by reason whereof this act shall take effect and
18 be in full force from and after its passage and approval.
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1 Passed the House of Representatives the 26th day of March, 2026.

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4 Presiding Officer of the House
5 of Representatives

6 Passed the Senate the ____ day of _____, 2026.

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9 Presiding Officer of the Senate